

23CHCV00750 23CHCV00750

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Case Number: 23CHCV00750 Hearing Date: July 14, 2026 Dept: F43

Dept. F43

Hearing Date: 07-14-26

Case # 23CHCV00750, Leyva, et
al. v. Sylmar Health and Rehabilitation Center, et al.

Trial Date: 09-28-26

MOTION TO COMPEL
DEPOSITIONS

MOVING PARTIES: Plaintiffs Richard Leyva, through his successor-in-interest
Daleen Leyva, and Daleen Leyva

RESPONDING PARTY: No opposition was filed.

RELIEF REQUESTED

Order compelling defendant Sylmar Health and
Rehabilitation Center, Inc. and defendant Golden State Health Centers, Inc. to
produce Martha Vega, Mildren de Castro, RN, and a person most knowledgeable for
Management Agreement and Cost Report for depositions. Order imposing \$2,535 in monetary sanctions
against defendant Sylmar Health and its counsel of record Hinshaw &
Culbertson, LLP, jointly and severally.

RULING: Motion is continued. The parties must meet and confer directly and
file a joint statement.

SUMMARY OF ACTION

This elder abuse action arises out of the care and treatment of plaintiff Richard Leyva at defendant Sylmar Health and Rehabilitation Center, Inc.'s 24-hour nursing facility. Defendant Sylmar Health is a locked psychiatric facility whose residents were incarcerated, many of whom are under the care of court-appointed conservators.

On March 14, 2023, Mr. Leyva filed a complaint alleging elder abuse, negligence, violation of California Health and Safety Code section 1430, subdivision (b), and willful misconduct.

Mr. Leyva passed away on August 11, 2025. On November 7, 2025, Mr. Leyva, through his mother and successor-in-interest, Daleen Leyva, filed a First Amended Complaint against defendants Sylmar Health and Rehabilitation Center, Inc. and Golden State Health Centers, Inc. (Defendants), asserting an additional wrongful death claim. Ms. Leyva alleges that defendant Sylmar Health and the owner of the facility failed to protect Mr. Leyva from multiple falls, the final of which resulted in a traumatic brain injury.

Martha

Vega, RN

On July 28, 2023, Plaintiffs served Defendants with a deposition notice for Martha Vega, RN. (Declaration of David E. Ramirez ¶ 2, Exh. 1 [noticed for August 10, 2023 at 1:00 p.m.].) At some point defense counsel responded, stating August 2023 was too busy and requested October dates. (Id., Exh. 2.) Plaintiffs provided October dates, but defense counsel never responded. On November 2, 2023, plaintiffs' counsel requested November 2023 dates from defense counsel. (Id., Exh. 2.) Plaintiffs followed up again on November 17 and November 28. (Id. ¶ 3.)

On December 12, 2023, Plaintiffs served a second deposition notice for Ms. Vega, noticing the deposition for January 24, 2024 at 1:00 p.m. (Ramirez Decl. ¶ 3, Exh. 3.) Defendants canceled the deposition, and on September 16, 2024, plaintiffs' counsel sent an email attempting to reschedule the deposition.

(Id. ¶ 4, Exh. 4.)

On November 19, 2024, Plaintiffs served a third deposition notice for Ms. Vega, noticing the deposition for December 3, 2024 at 1:00 p.m. (Ramirez Decl. ¶ 5, Exh. 5.) At some point, Defendant objected to the deposition notice, and on the day of the deposition, plaintiffs' counsel requested alternative deposition dates for Ms. Vega. (Id. ¶ 6, Exh. 6.) On February 11, 2025, Plaintiffs' counsel and defense counsel attended the Mandatory Settlement Conference. (2/11/25 Minute Order.) Later that day, Plaintiffs served a fourth deposition notice for Ms. Vega, noticing the deposition for February 26, 2025 at 2:00 p.m. (Ramirez Decl. ¶ 7, Exh. 7.) Defendant objected to the deposition. (Id. ¶ 8.) On February 27, 2025, Plaintiffs served a fifth deposition notice for Ms. Vega, noticing the deposition for April 8, 2025 at 1:00 p.m. (Ramirez Decl. ¶ 8, Exh. 8.) This deposition did not occur.

Over one year later on April 9, 2026, Plaintiffs served a sixth and final deposition notice for April 22, 2026 at 9:00 a.m. (Ramirez Decl. ¶ 9, Exh. 9.) This deposition did not go forward, and defense did not send alternative dates. (Id. ¶ 10.)

Mildred
de Castro, RN

On April 9, 2026, Plaintiffs served Defendants with a deposition notice for defendant Golden State Health Centers, Inc.'s nurse consultant, Mildred de Castro. (Ramirez Decl. ¶ 13, Exh. 11 [noting the deposition for April 22, 2026 at 11:00 a.m.].) In response to plaintiffs' counsel's April 16, 2026, follow-up email, defense counsel apologized for the delay in responding, stated the date did not work, and that he would provide new dates on April 16, 2026. (Id. ¶ 14, Exh. 12.) After receiving no response, plaintiffs' counsel sent a follow-up email on May 20, 2026 requesting alternative dates by the end of the week, May 23, 2026. (Id. ¶ 15, Exh. 13.) Defense counsel responded that same day, apologizing for the delay. (Id. ¶

15, Exh. 13.) Defendants have yet to produce Ms. De Castro for a deposition. (Id. ¶ 16.)

Person

Most Knowledgeable Deposition

On April 9, 2026, Plaintiffs served Defendants with a deposition notice for person most knowledgeable (PMK) on the Management Agreement and Cost Reports. (Ramirez Decl. ¶ 17.) Plaintiffs' counsel followed up with defense counsel on April 16, 2026 and May 20, 2026, but defense counsel never provided alternative dates or produced a PMK. (Id. ¶¶ 18-20.)

On May 20, 2026, plaintiffs' counsel emailed defense counsel requesting alternate deposition dates for Ms. Vega, Ms. De Castro, and the PMK re: Management Agreement and Cost Reports by the end of the week. (Ramirez Decl. ¶ 10, 15-16, 18-20, Exh. 10.) Although defense counsel has responded to Plaintiffs' other emails, defense counsel never provided alternative dates for the depositions or to produce the individuals for the depositions. However, on May 21, 2026, defense counsel offered May 29, 2026, as a date for Ms. Vega's deposition. (Id. ¶ 12.)

The next day, On May 22, 2026, Plaintiffs filed the instant motion to compel the three depositions and to impose \$2,535 in monetary sanctions against defendant Sylmar Health and its counsel of record, jointly and severally. Plaintiff did not provide the court with an update concerning whether the Vega deposition has occurred. No opposition was filed.

ANALYSIS

and MEET AND CONFER

A motion to compel a deposition must include either a meet and confer declaration or, if the deponent fails to attend the deposition and to produce the items described in the deposition notice, "a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., §§ 2025.450, subd. (b), 2016.040.)

In Department F43, meet and confer means in person or via phone. A letter or email does not suffice. (Department F43 Courtroom Information, p. 2.)

After reviewing the moving papers, the court finds that the parties never met and conferred in person, by phone, or by video conference concerning the depositions. Nor did Plaintiffs take any certificates of nonappearance at the scheduled depositions. The extent of plaintiffs' counsel's "meet and confer" efforts was sending emails, with defense counsel responding by email. Because the moving papers do not state that Plaintiff's counsel ever attempted to call or meet directly with defense counsel, the "meet and confer" requirement is not met.

Therefore, the court continues the hearing on the motion. The parties are ordered to meet and confer concerning scheduling the remaining depositions. The parties must meet directly by phone, or by video conference. The parties are also ordered to file a joint statement of remaining issues by a date to be set by the court. The joint statement should briefly describe the matters in dispute, followed by Plaintiffs' arguments and then Defendants' arguments.

CONCLUSION and ORDER

1. The motion is continued to _____.

2. The parties are ordered to conduct a meaningful "meet and confer" in person, by telephone, or by video conference as described above.

3. The parties shall submit a joint statement of the remaining issues as described above. The format should be as follows: The parties should recite the specific depositions at issue, followed by the moving party's statement of why it should be compelled, followed by the opposing party's statement of why it should not be compelled. To the extent that an argument is repeated for the other depositions, the party shall simply refer to the section where the argument was previously made.

4. The deadline for the joint statement is

_____.

Plaintiffs to give notice.